Noise in strata | NSW Government

nsw.gov.au/housing-and-construction/strata/living/noisePrinted: 26 January 2022

Noise in strata

You have the right to live peacefully in your home. Most noise problems can be solved by speaking to the resident. Otherwise, contact the strata committee to find out your options.

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- What kind of noise is acceptable?
- What to do about a noisy neighbour
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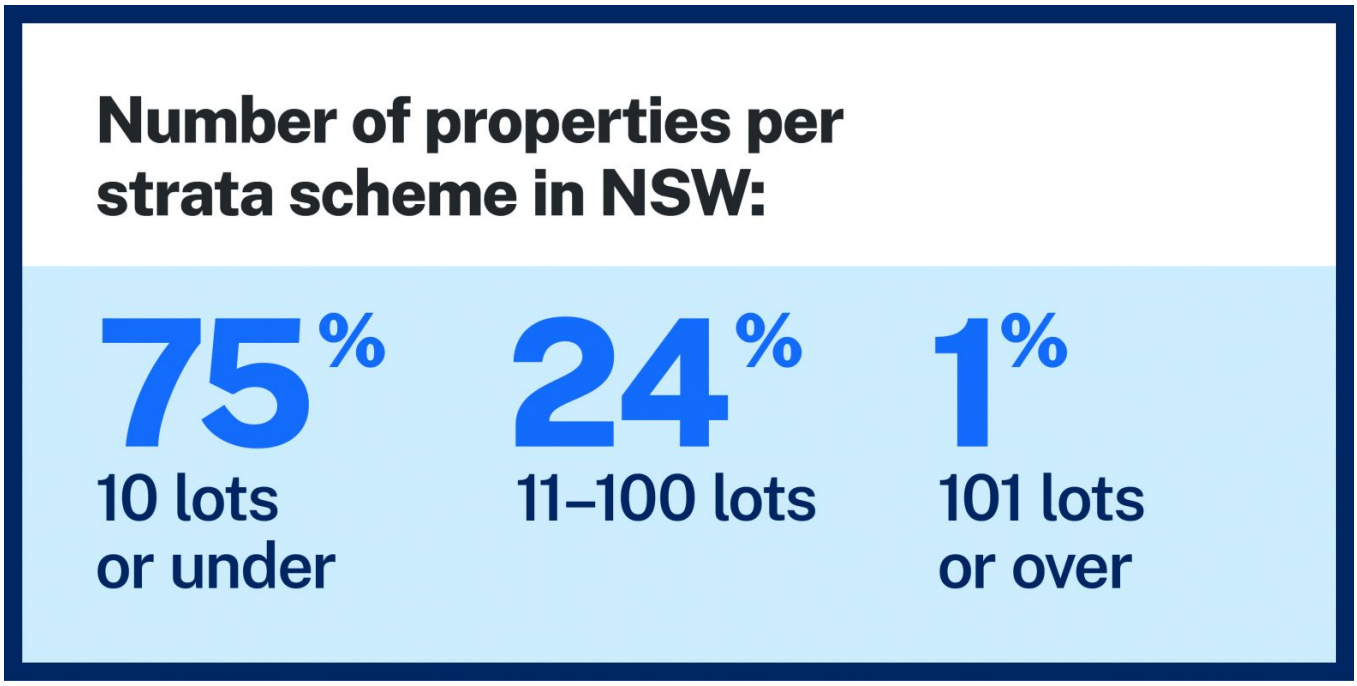
Key information

- People can have different opinions about what noise is acceptable, and what isn't.
- Check your strata by-laws, which will outline what noise is acceptable. Your local council will also have rules.
- If you're having an issue with noise, speak to the resident to see if they can fix it. If they can't or won't fix it, ask the owners corporation for help.
- If the issue is still not fixed, you and the owners corporation can use an internal or external resolution process.
- The resolution process may include using a mediation service.

Did you know



What kind of noise is acceptable?

People can have different opinions about noise that is acceptable, and how long it can last before it becomes an issue.

Common noise complaints include barking dogs, power tools, loud music, alarms, construction, and noisy cars.

Your local council will have rules about what noise is acceptable and at what time(s). Contact your local council or check their website to find out what rules apply in your area.

If you need to make a noise complaint, follow the steps below.

What to do about a noisy neighbour

1 **Speak to the resident**

If you have a problem with noise, and know who is making it, have a friendly conversation with them to let them know it is bothering you.

You might find that your neighbour is not aware they are disturbing you.

You should give your neighbour a chance to fix the issue, or to discuss with you what can be done.

Not all noises will be breaking the rules. Your neighbour might not need to stop making the noise. However, they should still consider your complaint.

Check your local council rules and **strata by-laws (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)** to find out if noise rules are being broken.

2 **Use the internal resolution process**

If you still cannot resolve the noise issue, you may want to use the internal resolution process (if there is one).

Contact a member of the strata committee or the strata manager to get information about what your scheme's dispute resolution process involves.

3 Contact the owners corporation

If you don't know where the noise is coming from, or talking to the resident doesn't solve the issue, speak or write to the strata manager or the secretary of the owners corporation.

If you are a tenant, contact your landlord or leasing agent, who can raise the complaint for you.

4 Issue a notice to comply

The strata committee or strata managing agent will investigate whether the noise breaks by-laws. If they find the by-laws are being broken, they can issue the resident a 'notice to comply', if they have delegation to do so.

The notice to comply will warn the resident that further noise issues may be taken to the NSW Civil and Administrative Tribunal.

Use this form to issue a Notice to comply with a by-law:

Notice to Comply (PDF 270.08KB) (https://www.nsw.gov.au/sites/default/files/2022-03/notice-to-comply.pdf)

5 External resolution

If your scheme does not have an internal resolution process, or it does not help, any party in the dispute can contact NSW Fair Trading.

NSW Fair Trading provides a free mediation service, which helps to solve problems between strata residents, owners and managers.

Learn more about dispute resolution and mediation (https://www.nsw.gov.au/housing-and-construction/strata/disputes-complaints)

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday
In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Disputes and complaints (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

Learn how disputes between owners, or residents, or complaints against strata managers and other workers can be resolved.

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Understanding by-laws (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)

By-laws cover things like pets, parking, noise and smoking, so it is important to understand how they affect you.

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Serving on a strata committee (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee)

Understand the roles, duties and responsibilities of the strata committee, and how they help with the day-to-day running of your building.

Helpful links

- **How to know who my strata manager is? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)**
- **How do I contact the strata committee? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)**

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